# Corporation/Entity Identification Information Record

NOTE: A Corporation/Entity Identification Information Record is required by the *Proceeds of Crime (Money Laundering) and Terrorist Financing Act*. This Record must be completed by the REALTOR® member whenever they act in respect to the purchase or sale of real estate.
It is recommended that the Corporation/Entity Identification Information Record be completed:

(i) for a buyer when the offer is submitted and/or a deposit made, and

(ii) for a seller when the seller accepts the offer.

**Transaction Property Address:** . . . . . .

**Sales Representative/Broker Name:** . . . . . .

**Date:** . . . . . .

## A.1. Verification of Corporation

NOTE: Either section A.1 or A.2 must be completed for your corporate/entity clients or unrepresented entities that are not clients, but are parties to the transaction (e.g. unrepresented buyer or seller).

**1. Name of Corporation:** . . . . . .

**2. Corporate Address:** . . . . . .

**3. Nature of Principal Business:** . . . . . .

**4. Name of Directors:**

**5. Type of Verification Record:** . . . . . .

**6. Source of Verification record:**
Records may be paper or electronic version. If record is in paper format or electronic database not accessible to public, a copy must be kept. If record is an electronic version in public database, a record of corporation's registration number and type and source of record (e.g. Corporation Canada's website) must be kept . . . . . .

**7. Registration number of corporation:** . . . . . .

**8. Attach a copy of corporate records showing authority to bind corporation regarding transaction:**
(e.g., certificate of incumbency, articles of incorporation, by-laws setting out officers duly authorized to sign on behalf of corporation)

☐ Check this box when attached.

## A.2. Verification of Other Entity *(if applicable)*

**1. Name of other entity:** . . . . . .

**2. Address:** . . . . . .

**3. Nature of Principal Business:** . . . . . .

**4. Type of Verification Record:** . . . . . .

**5. Source of Record:** Records may be paper or electronic version. If record is in paper format or electronic database not accessible to the public, a copy must be kept. If record is an electronic version in a public database, a record of corporation's registration number and type and source of record (e.g. Corporation Canada's website) must be kept. . . . . .

**6. Registration number:** . . . . . .


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## A.3 Unrepresented Entity Reasonable Measures Record *(if applicable)*

Only complete this section when you are unable to ascertain the existence of an unrepresented entity.

**1. Measures taken to Confirm Existence** *(check one)*:

☐ Asked unrepresented entity for information to confirm their existence

☐ Other, explain: . . . . . .

**Date on which above measures taken:**. . . . . .

**2. Reasons why measures were unsuccessful** *(check one)*:

☐ Unrepresented entity did not provide information

☐ Other, explain: . . . . . .

## B. Verification of Third Parties

NOTE: Take reasonable measures to determine whether your clients are acting on behalf of third parties by completing this section of the form. If you are not able to determine whether your clients are acting on behalf of a third party but there are reasonable grounds to suspect there are, complete Section B.1. If there is a third party, complete Section B.2.

### B.1 Third Party Reasonable Measures

**Is the transaction being conducted on behalf of a third party according to the client?** *(check one)*:

☐ Yes

☐ No

**Describe why you think your client may be acting on behalf a third party:**

### B.2 Third Party Record

**1. Name of third party:** . . . . . .

**2. Address:** . . . . . .

**3. Telephone number:** . . . . . .

**4. Date of Birth** *(if applicable)*:. . . . . .

**5. Nature of Principal Business or Occupation:** . . . . . .

. . . . . .

**6. Registration or incorporation number, and jurisdiction and country that issued that number** *(if applicable)*: . . . . . .

. . . . . .

**7. Relationship between third party and client:**. . . . . .

. . . . . .

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## C. Client Risk

**Part 1:** Answer the following questions by circling the answer that applies:

| # | Question | | | |
|---|---|---|---|---|
| 1 | Prior to this transaction, did you previously work with this client or have a relationship with them? | ☐ Yes | ☐ No | |
| 2 | To your knowledge, does the client have a criminal history in regards to illegal drug trafficking, bribery, fraud, forgery, murder, robbery, counterfeit money, stock manipulation, tax evasion and copyright infringement. | ☐ Yes | ☐ No | ☐ Possibly |
| 3 | Is there a concern about money laundering or terrorist financing in the geographic location of the property, your brokerage location or where the client is operating from? | ☐ Yes | ☐ No | ☐ Possibly |
| 4 | Is the client situated within 10 km of an international border or 5 km of an international airport? | ☐ Yes | ☐ No | |
| 5 | Is the client a Canadian corporation or entity? | ☐ Yes | ☐ No | ☐ Unknown |
| 6 | Is the client subject to a Ministerial Directive? (see Ministerial Directive applicable to North Korea, Russia, etc.). | ☐ Yes | ☐ No | |
| 7 | Are you aware of any other connection to the client and a high-risk country? If yes or possibly, explain: | ☐ Yes | ☐ No | ☐ Possibly |
| 8 | Has the client attempted to conceal its identity in any way (e.g. use an intermediary like a lawyer, refuse to provide ID at any point, etc.) | ☐ Yes | ☐ No | |
| 9 | Has your brokerage previously filed a suspicious transaction or terrorist property report on this client? | ☐ Yes | ☐ No | |
| 10 | Does the transaction seem unusual in light of the client's business? If yes, explain: | ☐ Yes | ☐ No | |
| 11 | Does the transaction involve a third party? | ☐ Yes | ☐ No | ☐ Possibly |
| 12 | Did you verify the existence of the client in a non-face-to-face setting? | ☐ Yes | ☐ No | |
| 13 | Did the client provide some or all of the deposit in cash? | ☐ Yes | ☐ No | |
| 14 | Does the transaction seem unusual in light of the client's past transactions with the brokerage? | ☐ Yes | ☐ No | |
| 15 | Does the client appear to be a shell company (a corporation without active business operations or significant assets?) | ☐ Yes | ☐ No | ☐ Possibly |
| 16 | Does the client operate a cash-intensive business (e.g. a bar, club, laundromat, etc.) or offer online gambling? | ☐ Yes | ☐ No | ☐ Possibly |
| 17 | Is there anything else unusual about the client or the transaction? If yes, explain: | ☐ Yes | ☐ No | |

**Part 2:** Circle the number below that corresponds to the responses you provided in Part 1. Add up all the numbers in all columns to get a total risk score for the client:

| Q# | Yes | No | Unknown/Possibly |
|---|---|---|---|
| 1 | 0 | 2 | 0 |
| 2 | 10 | 0 | 1 |
| 3 | 2 | 0 | 1 |
| 4 | 2 | 0 | N/A |
| 5 | 0 | 2 | 1 |
| 6 | 10 | 0 | N/A |
| 7 | 5 | 0 | 1 |
| 8 | 6 | 0 | N/A |
| 9 | 10 | 0 | N/A |

| Q# | Yes | No | Unknown/Possibly |
|---|---|---|---|
| 10 | 5 | 0 | N/A |
| 11 | 2 | 0 | 1 |
| 12 | 2 | 0 | N/A |
| 13 | 3 | 0 | N/A |
| 14 | 4 | 0 | N/A |
| 15 | 5 | 0 | 1 |
| 16 | 5 | 0 | 1 |
| 17 | 4 | 0 | N/A |
| Total | | | |

**Part 3:** This form is intended to provide a rough approximation of risk and is not intended to replace a sales representative's judgment. If the score is 10 or above or you are uncertain about what score to apply, seek guidance from your Compliance Officer.

**Part 4:** Apply the following measures according to the client risk score that was approved in Part 3:

< 10: client is not high risk. No additional steps required.

≥ 10: client is high risk. Speak to Compliance Officer and apply high risk measures, such as asking for an additional piece of ID or conducting an Internet search of the client.

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## D. Business Relationship

### D.1. Purpose and Intended Nature of the Business Relationship

Check the appropriate boxes.

Acting as an agent for the purchase or sale of:

- ☐ Land for Commercial Use
- ☐ Commercial property
- ☐ Other, please specify: . . . . . .

Optional: describe your business dealings with the client and include information that would help you anticipate the types of transactions and activities that the client may conduct.

### D.2. Measures Taken to Monitor Business Relationship and Keep Client Information Up-To-Date

D.2.1 If the client is a corporation, ask if its name and address and name of its directors have changed and if they have include the updated information on page one. If the client is an entity other than a corporation, ask if its name, address and principal place of business has changed and if they have include the updated information on page one.

D.2.2 Keep all relevant correspondence with the client on file in order to maintain a record of the information you have used to monitor the business relationship with the client. Optional - if you have taken measures beyond simply keeping correspondence on file, specify them here:

D.2.3. If the client is high risk you must conduct enhanced measures to monitor the brokerage's business relationship and keep their client information up to date. Optional - consult your Compliance Officer and document what enhanced measures you have applied:

### D.3 Suspicious Transactions

Don't forget, if you see something suspicious during the transaction report it to your Compliance Officer. Consult your policies and procedures manual for more information.

## E. Terrorist Property Reports

Don't forget to follow your brokerage's procedures with respect to terrorist property reports. Consult your policies and procedures manual for more information.

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